



Notification Waiver Determination

Northstar – business assets of Mildura Mazda

Acquisition	Northstar Mildura Pty Ltd (Northstar) applied for a notification waiver in respect of its proposed acquisition of certain business assets associated with the Mildura Mazda dealership, as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	17 June 2026

Parties to the Acquisition	The acquirer, Northstar, is part of an automotive group comprising a number of related entities which own and operate motor vehicle dealerships. Across those entities, the group is engaged in the retail supply of motor vehicles, including new, demonstrator and used vehicles, across a range of automotive brands (including Hyundai, Nissan and BMW). The group also supplies aftermarket services, including vehicle servicing, repairs, spare parts and accessories, and may facilitate ancillary services such as vehicle finance, insurance and extended warranties. Mildura Mazda, conducts motor vehicle dealership activities, including the retail and wholesale sale of new and used Mazda vehicles, vehicle servicing and repairs, the sale of spare parts and accessories, and associated aftersales services. The business primarily services customers in Mildura and the surrounding regional catchment, including north-west Victoria and adjoining regions of New South Wales and South Australia. Northstar and Mildura Mazda are both involved in the supply of new and used cars, and associated goods and services, in the Mildura region.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and certain publicly available information, and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. there is no overlap in the brands of cars supplied by Northstar and Mildura Mazda

	b. there is a small horizontal overlap between Northstar and Mildura Mazda in the supply of new and used motor vehicles in the Mildura region c. there are alternative suppliers of new and used cars in the Mildura region. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. The ACCC considers that there is a low likelihood of the Acquisition meeting the thresholds for notification. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Woodward pursuant to a delegation under section 25(1) of the Act